# COMMERCIAL AGREEMENT - RECORD 014

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-014

## 1. Recitals and defined terms

This Component Supply Agreement is made between Helioscope Robotics, Inc. as Provider and Northfield Drive Systems LLC as Supplier, a drive units and gearboxes business organised in Wisconsin, contracting through Northfield Drive Systems LLC. Northfield and the Provider have agreed that terms defined in the recitals and in Schedule 3 carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Northfield Drive Systems LLC undertakes that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On this point, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 2 sites in Wisconsin means Northfield applies the Component Supply Agreement through its regional operations team rather than through head office. The Northfield file records the position as at the last amendment, and Article 15 (Limitation of Liability) is the reference a reviewer should cite when raising it.

The Provider has undertaken to Northfield that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the operative wording, performance is measured against the exhibit and not against any statement made in the parties' correspondence. This bites at Northfield's 2 sites, since a drive units and gearboxes operator administers the Component Supply Agreement where the units work. Nothing in the Northfield negotiation history qualifies Article 12 (Intellectual Property), and a reviewer should not read the pre-signature drafts as doing so.

The parties have recorded in Exhibit B that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the negotiated text, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Northfield has 2 sites, and the Component Supply Agreement treats each as a separate delivery point. Where Northfield has raised a query the Provider has answered by reference to Article 14 (Indemnities), and the exchange is on the contract file.

Article 2 (Definitions) of the Component Supply Agreement is to be construed so that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Per the amendment history, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In drive units and gearboxes the burden of this sits with operations, and Northfield discharges it across 2 sites under the Component Supply Agreement. Where Northfield has raised a query the Provider has answered by reference to Article 8 (Acceptance), and the exchange is on the contract file.

**Northfield supply agreement - Exhibit C - Service Levels and Credit Ladder**

| Northfield service level | Measure | Commitment | Credit per breach | Monthly credit cap | Exclusion | Escalated remedy |
|---|---|---|---|---|---|---|
| NOR-L001 | availability | 94.0% | 6% of monthly fee | 13% of monthly fee | excluding force majeure | credit then termination right |
| NOR-L002 | response time | 96.6% | 1% of monthly fee | 28% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L003 | throughput | 90.4% | 11% of monthly fee | 23% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L004 | resolution time | 96.7% | 12% of monthly fee | 30% of monthly fee | excluding Customer-caused outage | credit only |
| NOR-L005 | availability | 97.5% | 2% of monthly fee | 17% of monthly fee | excluding force majeure | credit then termination right |
| NOR-L006 | resolution time | 97.2% | 8% of monthly fee | 14% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L007 | resolution time | 91.2% | 11% of monthly fee | 28% of monthly fee | excluding scheduled | credit only |

| Northfield service level | Measure | Commitment | Credit per breach | Monthly credit cap | Exclusion | Escalated remedy |
|---|---|---|---|---|---|---|
| | | | | | maintenance | |
| NOR-L008 | resolution time | 93.1% | 12% of monthly fee | 18% of monthly fee | excluding force majeure | credit then termination right |
| NOR-L009 | throughput | 90.1% | 1% of monthly fee | 19% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L010 | resolution time | 94.2% | 7% of monthly fee | 9% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L011 | resolution time | 90.5% | 12% of monthly fee | 16% of monthly fee | no exclusion | credit then termination right |
| NOR-L012 | response time | 92.2% | 1% of monthly fee | 18% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L013 | resolution time | 97.6% | 1% of monthly fee | 7% of monthly fee | excluding Customer-caused outage | credit only |
| NOR-L014 | availability | 93.4% | 7% of monthly fee | 23% of monthly fee | excluding Customer-caused outage | credit only |
| NOR-L015 | throughput | 97.7% | 11% of monthly fee | 20% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L016 | resolution time | 93.6% | 4% of monthly fee | 17% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L017 | throughput | 90.8% | 12% of monthly fee | 15% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L018 | throughput | 91.2% | 1% of monthly fee | 29% of monthly fee | excluding Customer-caused outage | credit only |
| NOR-L019 | response time | 97.9% | 10% of monthly fee | 26% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L020 | response time | 97.8% | 3% of monthly fee | 6% of monthly fee | excluding force majeure | credit only |
| NOR-L021 | throughput | 95.4% | 1% of monthly fee | 27% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L022 | availability | 97.9% | 1% of monthly fee | 26% of monthly fee | no exclusion | credit only |
| NOR-L023 | throughput | 92.0% | 7% of monthly fee | 23% of monthly fee | no exclusion | credit then termination right |
| NOR-L024 | availability | 95.6% | 4% of monthly fee | 5% of monthly fee | excluding force majeure | credit then termination right |
| NOR-L025 | resolution time | 96.1% | 2% of monthly fee | 17% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L026 | availability | 91.7% | 8% of monthly fee | 11% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L027 | availability | 96.2% | 8% of monthly fee | 18% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L028 | resolution time | 91.7% | 9% of monthly fee | 8% of monthly fee | no exclusion | credit only |
| NOR-L029 | resolution time | 95.0% | 10% of monthly fee | 23% of monthly fee | excluding Customer-caused outage | credit only |
| NOR-L030 | response time | 93.4% | 5% of monthly fee | 13% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L031 | availability | 92.4% | 12% of monthly fee | 28% of monthly fee | excluding force majeure | credit then termination right |
| NOR-L032 | availability | 94.9% | 12% of monthly fee | 25% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L033 | availability | 91.9% | 3% of monthly | 14% of monthly | excluding | credit then |

| Northfield service level | Measure | Commitment | Credit per breach | Monthly credit cap | Exclusion | Escalated remedy |
|---|---|---|---|---|---|---|
| | | | fee | fee | Customer-caused outage | termination right |
| NOR-L034 | availability | 98.4% | 2% of monthly fee | 19% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L035 | response time | 98.9% | 2% of monthly fee | 19% of monthly fee | excluding force majeure | credit only |
| NOR-L036 | response time | 95.0% | 6% of monthly fee | 26% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L037 | resolution time | 96.4% | 11% of monthly fee | 23% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L038 | throughput | 96.4% | 6% of monthly fee | 6% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L039 | response time | 98.6% | 10% of monthly fee | 20% of monthly fee | no exclusion | credit only |
| NOR-L040 | throughput | 94.8% | 3% of monthly fee | 20% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L041 | availability | 94.3% | 10% of monthly fee | 27% of monthly fee | excluding force majeure | credit then termination right |
| NOR-L042 | throughput | 95.9% | 6% of monthly fee | 9% of monthly fee | excluding Customer-caused outage | credit only |
| NOR-L043 | availability | 90.5% | 9% of monthly fee | 9% of monthly fee | excluding force majeure | credit only |
| NOR-L044 | response time | 97.2% | 4% of monthly fee | 22% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L045 | availability | 90.2% | 12% of monthly fee | 26% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L046 | response time | 93.3% | 8% of monthly fee | 12% of monthly fee | no exclusion | credit then termination right |
| NOR-L047 | throughput | 97.0% | 1% of monthly fee | 21% of monthly fee | no exclusion | credit then termination right |
| NOR-L048 | availability | 92.6% | 8% of monthly fee | 12% of monthly fee | no exclusion | credit only |
| NOR-L049 | availability | 90.2% | 6% of monthly fee | 17% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L050 | resolution time | 90.2% | 8% of monthly fee | 27% of monthly fee | excluding force majeure | credit only |
| NOR-L051 | availability | 94.7% | 8% of monthly fee | 13% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L052 | response time | 90.8% | 1% of monthly fee | 20% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L053 | availability | 97.6% | 6% of monthly fee | 24% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L054 | throughput | 98.7% | 7% of monthly fee | 20% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L055 | availability | 92.6% | 12% of monthly fee | 13% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L056 | throughput | 95.6% | 5% of monthly fee | 5% of monthly fee | no exclusion | credit only |
| NOR-L057 | availability | 90.4% | 9% of monthly fee | 16% of monthly fee | excluding Customer-caused outage | credit only |
| NOR-L058 | availability | 90.5% | 2% of monthly fee | 17% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L059 | throughput | 96.7% | 4% of monthly | 19% of monthly | no exclusion | credit only |

| Northfield service level | Measure | Commitment | Credit per breach | Monthly credit cap | Exclusion | Escalated remedy |
|---|---|---|---|---|---|---|
| | | | fee | fee | | |
| NOR-L060 | response time | 90.0% | 7% of monthly fee | 26% of monthly fee | excluding Customer-caused outage | credit only |
| NOR-L061 | throughput | 94.8% | 9% of monthly fee | 18% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L062 | resolution time | 91.0% | 4% of monthly fee | 17% of monthly fee | excluding force majeure | credit only |
| NOR-L063 | availability | 95.0% | 3% of monthly fee | 29% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L064 | response time | 97.8% | 5% of monthly fee | 8% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L065 | resolution time | 98.9% | 11% of monthly fee | 19% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L066 | throughput | 94.0% | 5% of monthly fee | 26% of monthly fee | excluding force majeure | credit only |
| NOR-L067 | response time | 98.1% | 1% of monthly fee | 27% of monthly fee | no exclusion | credit then termination right |
| NOR-L068 | response time | 94.3% | 10% of monthly fee | 8% of monthly fee | no exclusion | credit then termination right |
| NOR-L069 | resolution time | 97.8% | 1% of monthly fee | 14% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L070 | throughput | 96.3% | 10% of monthly fee | 5% of monthly fee | no exclusion | credit then termination right |
| NOR-L071 | throughput | 93.8% | 1% of monthly fee | 7% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L072 | throughput | 91.8% | 5% of monthly fee | 21% of monthly fee | excluding force majeure | credit then termination right |
| NOR-L073 | availability | 94.9% | 4% of monthly fee | 23% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L074 | resolution time | 95.9% | 11% of monthly fee | 12% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L075 | resolution time | 91.1% | 10% of monthly fee | 7% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L076 | resolution time | 91.8% | 10% of monthly fee | 23% of monthly fee | excluding Customer-caused outage | credit then termination right |
| NOR-L077 | availability | 91.5% | 4% of monthly fee | 27% of monthly fee | excluding Customer-caused outage | credit only |
| NOR-L078 | throughput | 96.6% | 9% of monthly fee | 10% of monthly fee | excluding scheduled maintenance | credit then termination right |
| NOR-L079 | throughput | 91.9% | 1% of monthly fee | 5% of monthly fee | excluding scheduled maintenance | credit only |
| NOR-L080 | resolution time | 96.3% | 2% of monthly fee | 24% of monthly fee | excluding force majeure | credit only |

## 2. Scope of supply and orders

Northfield pays the fees under Exhibit B in consideration of the Provider's undertaking that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As it bites, performance is measured against the exhibit and not against any statement made in the parties' correspondence. This bites at Northfield's 2 sites, since a drive units and gearboxes operator administers the Component Supply Agreement where the units work. Where Northfield has raised a query the Provider has answered by reference to Article 17 (Transition Assistance), and the exchange is on the contract file.

The Provider has undertaken to Northfield that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Strictly, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Northfield has 2 sites, and the Component Supply Agreement treats each as a separate delivery point. The obligation as it applies to Northfield was tightened at signature, and Article 6 (Fees and Payment) carries the negotiated wording rather than the standard wording.

As between Northfield and the Provider, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As agreed, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In drive units and gearboxes the burden of this sits with operations, and Northfield discharges it across 2 sites under the Component Supply Agreement. For a supplier of Northfield's size the clause is unremarkable, but Article 21 (Governing Law and Disputes) is drafted more tightly here than in the Provider's standard form.

Northfield retains the right, notwithstanding Article 4 (Orders and Quantities), to require that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Procedurally, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Northfield, a drive units and gearboxes operator running 2 sites out of Wisconsin, the point matters because the Component Supply Agreement is administered site by site. Northfield has taken the point up once since signature; the correspondence is filed against Article 21 (Governing Law and Disputes) and did not result in an amendment.

## 3. Delivery, title and risk

On the terms of Exhibit B, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the face of the clause, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Running 2 sites in drive units and gearboxes, Northfield takes this obligation at site level rather than centrally under the Component Supply Agreement. The obligation as it applies to Northfield was tightened at signature, and Article 3 (Scope of Supply) carries the negotiated wording rather than the standard wording.

Article 9 (Customer Obligations) of the Component Supply Agreement is to be construed so that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On the mechanics, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Northfield runs 2 sites from Wisconsin in drive units and gearboxes, so the Component Supply Agreement is administered locally and this clause is applied per site. Notices under Article 17 (Transition Assistance) go to the contracting entity named in the recital and not to any Northfield affiliate that may operate a site.

The parties have recorded in Exhibit D that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As a remedy, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Operating 2 sites, Northfield applies the Component Supply Agreement at the point of delivery, as drive units and gearboxes practice requires. Notices under Article 10 (Change Control) go to the contracting entity named in the recital and not to any Northfield affiliate that may operate a site.

Article 13 (Licences) of the Component Supply Agreement is to be construed so that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. On the operative wording, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Wisconsin is where Northfield runs drive units and gearboxes operations across 2 sites, and the Component Supply Agreement follows that footprint. Where Northfield has raised a query the Provider has answered by reference to Article 10 (Change Control), and the exchange is on the contract file.

**Northfield supply agreement - Exhibit D - Component Prices, Lead Times and Sourcing**

| Northfield price line | Part number | Description | Unit price | Lead time weeks | MOQ | Sourcing | End-of-life notice |
|---|---|---|---|---|---|---|---|
| NOR-P0001 | part 1975-B | harness | $2,139 | 22 | 550 | dual sourced | last-time-buy notice 12 months |
| NOR-P0002 | part 7918-I | controller board | $2,188 | 11 | 450 | qualification in progress | EOL notice 6 months |
| NOR-P0003 | part 1574-R | drive unit | $2,387 | 21 | 150 | dual sourced | last-time-buy notice 12 months |
| NOR-P0004 | part 5393-N | optical sensor | $2,029 | 14 | 250 | single source | last-time-buy notice 12 months |
| NOR-P0005 | part 9719-S | battery module | $834 | 11 | 100 | qualification in progress | EOL notice 6 months |
| NOR-P0006 | part 5926-T | drive unit | $125 | 7 | 300 | single source | last-time-buy notice 12 months |
| NOR-P0007 | part 7125-B | drive unit | $633 | 19 | 50 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0008 | part 9943-L | drive unit | $873 | 12 | 450 | single source | last-time-buy notice 12 months |
| NOR-P0009 | part 3908-R | optical sensor | $937 | 10 | 50 | single source | no EOL commitment |
| NOR-P0010 | part 9090-S | controller board | $909 | 7 | 400 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0011 | part 5977-T | drive unit | $1,167 | 11 | 550 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0012 | part 8151-J | battery module | $975 | 18 | 150 | single source | last-time-buy notice 12 months |
| NOR-P0013 | part 6603-N | castor assembly | $577 | 21 | 300 | dual sourced | last-time-buy notice 12 months |
| NOR-P0014 | part 8217-W | harness | $1,728 | 5 | 200 | dual sourced | no EOL commitment |
| NOR-P0015 | part 9052-J | gearbox | $241 | 22 | 450 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0016 | part 2036-S | encoder | $2,053 | 4 | 600 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0017 | part 1523-H | castor assembly | $160 | 16 | 450 | dual sourced | EOL notice 6 months |
| NOR-P0018 | part 1327-R | harness | $1,221 | 12 | 550 | single source | last-time-buy notice 12 months |
| NOR-P0019 | part 2484-E | optical sensor | $409 | 22 | 250 | dual sourced | EOL notice 6 months |
| NOR-P0020 | part 7739-Z | gearbox | $1,247 | 24 | 400 | dual sourced | last-time-buy notice 12 months |
| NOR-P0021 | part 7787-A | controller board | $2,234 | 15 | 400 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0022 | part 9097-G | harness | $1,151 | 16 | 200 | dual sourced | no EOL commitment |
| NOR-P0023 | part 7899-K | controller board | $74 | 8 | 450 | dual sourced | no EOL commitment |
| NOR-P0024 | part 1346-V | gearbox | $1,120 | 23 | 500 | qualification in progress | no EOL commitment |
| NOR-P0025 | part 7997-B | harness | $1,985 | 21 | 200 | dual sourced | no EOL commitment |
| NOR-P0026 | part 9093-P | castor assembly | $1,516 | 4 | 100 | dual sourced | last-time-buy notice 12 months |

| Northfield price line | Part number | Description | Unit price | Lead time weeks | MOQ | Sourcing | End-of-life notice |
|---|---|---|---|---|---|---|---|
| NOR-P0027 | part 2443-J | battery module | $1,490 | 20 | 250 | dual sourced | EOL notice 6 months |
| NOR-P0028 | part 7016-G | gearbox | $2,169 | 17 | 200 | dual sourced | last-time-buy notice 12 months |
| NOR-P0029 | part 7437-Q | controller board | $262 | 9 | 50 | qualification in progress | no EOL commitment |
| NOR-P0030 | part 3806-E | battery module | $504 | 10 | 400 | qualification in progress | no EOL commitment |
| NOR-P0031 | part 8190-W | optical sensor | $109 | 13 | 100 | qualification in progress | no EOL commitment |
| NOR-P0032 | part 3267-L | drive unit | $1,333 | 8 | 300 | dual sourced | no EOL commitment |
| NOR-P0033 | part 9656-E | castor assembly | $2,070 | 18 | 350 | single source | last-time-buy notice 12 months |
| NOR-P0034 | part 8560-R | castor assembly | $1,960 | 11 | 250 | single source | no EOL commitment |
| NOR-P0035 | part 9695-B | battery module | $2,423 | 17 | 450 | qualification in progress | EOL notice 6 months |
| NOR-P0036 | part 6056-M | encoder | $618 | 21 | 250 | single source | last-time-buy notice 12 months |
| NOR-P0037 | part 2933-J | battery module | $1,226 | 7 | 200 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0038 | part 7631-G | harness | $1,766 | 8 | 500 | single source | EOL notice 6 months |
| NOR-P0039 | part 8443-U | encoder | $758 | 21 | 200 | qualification in progress | no EOL commitment |
| NOR-P0040 | part 5768-T | harness | $2,012 | 15 | 550 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0041 | part 8390-D | optical sensor | $1,550 | 10 | 400 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0042 | part 6048-F | harness | $2,129 | 13 | 250 | single source | EOL notice 6 months |
| NOR-P0043 | part 4602-P | encoder | $868 | 7 | 600 | qualification in progress | EOL notice 6 months |
| NOR-P0044 | part 5114-M | gearbox | $1,878 | 16 | 100 | qualification in progress | no EOL commitment |
| NOR-P0045 | part 7088-L | harness | $2,354 | 15 | 600 | dual sourced | EOL notice 6 months |
| NOR-P0046 | part 5631-R | castor assembly | $1,838 | 22 | 450 | dual sourced | last-time-buy notice 12 months |

## 3. Delivery, title and risk - part 2 of 2

Presentation of the 3. Delivery, title and risk carries on below without restarting the row numbers, the break being one of pagination only. The sequence is unbroken either side of it.

Readers should carry the 3. Delivery, title and risk's stated conventions across the break, since this part adds no definition of its own.

**Northfield supply agreement - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)**

| Northfield price line | Part number | Description | Unit price | Lead time weeks | MOQ | Sourcing | End-of-life notice |
|---|---|---|---|---|---|---|---|
| NOR-P0047 | part 1925-K | encoder | $681 | 4 | 150 | dual sourced | no EOL commitment |
| NOR-P0048 | part 3259-L | harness | $1,973 | 13 | 150 | qualification in progress | EOL notice 6 months |
| NOR-P0049 | part 8783-Y | optical sensor | $1,369 | 21 | 200 | dual sourced | last-time-buy notice 12 months |
| NOR-P0050 | part 3378-Y | controller board | $119 | 12 | 550 | qualification in progress | EOL notice 6 months |

| Northfield price line | Part number | Description | Unit price | Lead time weeks | MOQ | Sourcing | End-of-life notice |
|---|---|---|---|---|---|---|---|
| NOR-P0051 | part 9875-I | drive unit | $677 | 12 | 450 | single source | last-time-buy notice 12 months |
| NOR-P0052 | part 3458-H | harness | $1,732 | 15 | 450 | qualification in progress | no EOL commitment |
| NOR-P0053 | part 7310-C | controller board | $1,982 | 7 | 600 | single source | EOL notice 6 months |
| NOR-P0054 | part 9608-A | controller board | $2,208 | 20 | 500 | qualification in progress | EOL notice 6 months |
| NOR-P0055 | part 9523-I | castor assembly | $43 | 15 | 150 | qualification in progress | no EOL commitment |
| NOR-P0056 | part 2462-K | drive unit | $982 | 18 | 600 | dual sourced | last-time-buy notice 12 months |
| NOR-P0057 | part 9171-I | drive unit | $238 | 4 | 600 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0058 | part 2930-E | controller board | $1,988 | 20 | 450 | qualification in progress | EOL notice 6 months |
| NOR-P0059 | part 2392-R | castor assembly | $490 | 20 | 350 | qualification in progress | EOL notice 6 months |
| NOR-P0060 | part 8844-I | battery module | $1,648 | 13 | 300 | single source | no EOL commitment |
| NOR-P0061 | part 2709-J | harness | $2,224 | 25 | 250 | qualification in progress | no EOL commitment |
| NOR-P0062 | part 5699-N | controller board | $2,371 | 14 | 600 | single source | no EOL commitment |
| NOR-P0063 | part 3476-W | encoder | $722 | 25 | 100 | qualification in progress | no EOL commitment |
| NOR-P0064 | part 7850-I | gearbox | $1,193 | 12 | 600 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0065 | part 7461-Z | battery module | $2,080 | 25 | 400 | dual sourced | last-time-buy notice 12 months |
| NOR-P0066 | part 7601-J | drive unit | $1,441 | 14 | 150 | dual sourced | no EOL commitment |
| NOR-P0067 | part 8161-T | gearbox | $1,071 | 23 | 450 | dual sourced | no EOL commitment |
| NOR-P0068 | part 1714-D | battery module | $638 | 16 | 400 | qualification in progress | no EOL commitment |
| NOR-P0069 | part 9712-X | drive unit | $242 | 13 | 150 | single source | no EOL commitment |
| NOR-P0070 | part 6605-I | gearbox | $391 | 25 | 400 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0071 | part 6277-N | controller board | $2,319 | 7 | 550 | dual sourced | EOL notice 6 months |
| NOR-P0072 | part 4582-B | drive unit | $2,172 | 20 | 50 | qualification in progress | no EOL commitment |
| NOR-P0073 | part 5655-J | drive unit | $507 | 24 | 550 | dual sourced | EOL notice 6 months |
| NOR-P0074 | part 6142-D | optical sensor | $2,422 | 7 | 600 | qualification in progress | EOL notice 6 months |
| NOR-P0075 | part 8573-Q | harness | $913 | 18 | 450 | dual sourced | EOL notice 6 months |
| NOR-P0076 | part 6086-T | castor assembly | $869 | 16 | 350 | qualification in progress | EOL notice 6 months |
| NOR-P0077 | part 9094-U | controller board | $2,062 | 7 | 350 | qualification in progress | no EOL commitment |
| NOR-P0078 | part 4460-V | optical sensor | $547 | 17 | 400 | single source | no EOL commitment |
| NOR-P0079 | part 8372-T | drive unit | $574 | 5 | 350 | qualification in progress | no EOL commitment |
| NOR-P0080 | part 9929-Q | encoder | $816 | 20 | 100 | dual sourced | no EOL commitment |
| NOR-P0081 | part 5962-V | encoder | $1,243 | 24 | 150 | single source | no EOL commitment |
| NOR-P0082 | part 8716-P | encoder | $846 | 21 | 500 | single source | EOL notice 6 |

| Northfield price line | Part number | Description | Unit price | Lead time weeks | MOQ | Sourcing | End-of-life notice |
|---|---|---|---|---|---|---|---|
| | | | | | | | months |
| NOR-P0083 | part 3973-J | castor assembly | $189 | 6 | 100 | single source | EOL notice 6 months |
| NOR-P0084 | part 5421-R | optical sensor | $139 | 19 | 600 | dual sourced | no EOL commitment |
| NOR-P0085 | part 4137-E | encoder | $641 | 25 | 50 | qualification in progress | last-time-buy notice 12 months |
| NOR-P0086 | part 1260-J | battery module | $2,121 | 24 | 100 | single source | EOL notice 6 months |
| NOR-P0087 | part 3418-V | harness | $2,136 | 6 | 150 | single source | no EOL commitment |
| NOR-P0088 | part 4235-R | castor assembly | $1,250 | 17 | 100 | single source | no EOL commitment |
| NOR-P0089 | part 9640-I | harness | $2,362 | 23 | 50 | single source | last-time-buy notice 12 months |
| NOR-P0090 | part 8267-Z | castor assembly | $448 | 21 | 550 | single source | last-time-buy notice 12 months |
| NOR-P0091 | part 1918-W | encoder | $796 | 22 | 300 | single source | EOL notice 6 months |
| NOR-P0092 | part 3441-K | controller board | $83 | 4 | 50 | single source | last-time-buy notice 12 months |

## 4. Fees, invoicing and escalation

Northfield may require that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Negotiated position: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Because Northfield is a Wisconsin drive units and gearboxes business with 2 sites, the Component Supply Agreement devolves this to the site manager. Nothing in the Northfield negotiation history qualifies Article 6 (Fees and Payment), and a reviewer should not read the pre-signature drafts as doing so.

Northfield may require that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On the operative wording, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Wisconsin is where Northfield runs drive units and gearboxes operations across 2 sites, and the Component Supply Agreement follows that footprint. The Northfield relationship is managed against Article 8 (Acceptance) at each quarterly review, and any variance is minuted there rather than in the Order.

Read with Exhibit A, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the negotiated text, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Operating 2 sites, Northfield applies the Component Supply Agreement at the point of delivery, as drive units and gearboxes practice requires. Northfield has taken the point up once since signature; the correspondence is filed against Article 4 (Orders and Quantities) and did not result in an amendment.

The Provider has undertaken to Northfield that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Deliberately so: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. In drive units and gearboxes the burden of this sits with operations, and Northfield discharges it across 2 sites under the Component Supply Agreement. The Northfield file records the position as at the last amendment, and Article 3 (Scope of Supply) is the reference a reviewer should cite when raising it.

## 5. Service levels and credits

On the terms of Schedule 5, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Strictly, where the

parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Wisconsin is where Northfield runs drive units and gearboxes operations across 2 sites, and the Component Supply Agreement follows that footprint. Nothing in the Northfield negotiation history qualifies Article 11 (Data and Telemetry), and a reviewer should not read the pre-signature drafts as doing so.

Northfield Drive Systems LLC is entitled to require that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On timing, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Wisconsin is where Northfield runs drive units and gearboxes operations across 2 sites, and the Component Supply Agreement follows that footprint. Because Northfield operates in drive units and gearboxes, the practical burden of this clause falls on its Wisconsin operation, and Article 4 (Orders and Quantities) governs how it is measured.

Northfield acknowledges that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As to enforcement, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Site count matters here: Northfield has 2 sites, and the Component Supply Agreement treats each as a separate delivery point. Northfield has taken the point up once since signature; the correspondence is filed against Article 8 (Acceptance) and did not result in an amendment.

Northfield has agreed, and the Provider has accepted, that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On any reading, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Northfield's 2 sites, since a drive units and gearboxes operator administers the Component Supply Agreement where the units work. The Northfield relationship is managed against Article 21 (Governing Law and Disputes) at each quarterly review, and any variance is minuted there rather than in the Order.

## 6. Acceptance and change control

Subject to Article 12 (Intellectual Property), the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On the operative wording, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Northfield's 2 sites, since a drive units and gearboxes operator administers the Component Supply Agreement where the units work. Where Northfield has raised a query the Provider has answered by reference to Article 10 (Change Control), and the exchange is on the contract file.

Northfield Drive Systems LLC undertakes that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. In application, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. In drive units and gearboxes the burden of this sits with operations, and Northfield discharges it across 2 sites under the Component Supply Agreement. The obligation as it applies to Northfield was tightened at signature, and Article 12 (Intellectual Property) carries the negotiated wording rather than the standard wording.

Northfield may require that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Tighter here than standard: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Because Northfield is a Wisconsin drive units and gearboxes business with 2 sites, the Component Supply Agreement devolves this to the site manager. The Northfield relationship is managed against Article 14 (Indemnities) at each quarterly review, and any variance is minuted there rather than in the Order.

Northfield bears the risk that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Tighter here than standard: performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 2 sites, Northfield applies the Component Supply Agreement at the point of delivery, as drive units and gearboxes practice requires. Notices under Article 12 (Intellectual Property) go to the contracting entity named in the recital and not to any Northfield affiliate that may operate a site.

**Northfield supply agreement - Schedule 5 - Notices, Periods and Addressees**

| Northfield notice type | Subject | Period | Addressee | Method | Deemed given |
|---|---|---|---|---|---|
| NOR-N001 | price adjustment | 75 days | Chief Operating Officer | courier only | on despatch |
| NOR-N002 | termination for cause | 5 days | Chief Operating Officer | portal notice | on the second business day after despatch |
| NOR-N003 | non-renewal | 70 days | Chief Operating Officer | courier only | on despatch |
| NOR-N004 | renewal election | 45 days | Contracts Manager | portal notice | on despatch |
| NOR-N005 | renewal election | 45 days | General Counsel | portal notice | on the second business day after despatch |
| NOR-N006 | service credit claim | 35 days | designated account executive | portal notice | on despatch |
| NOR-N007 | termination for cause | 25 days | General Counsel | email with acknowledgement | on despatch |
| NOR-N008 | assignment request | 15 days | designated account executive | courier and email | on despatch |
| NOR-N009 | price adjustment | 45 days | General Counsel | courier only | on despatch |
| NOR-N010 | non-renewal | 15 days | General Counsel | courier only | on receipt |
| NOR-N011 | service credit claim | 20 days | designated account executive | courier and email | on the second business day after despatch |
| NOR-N012 | termination for cause | 90 days | General Counsel | courier and email | on receipt |
| NOR-N013 | change of control | 85 days | General Counsel | courier only | on despatch |
| NOR-N014 | force majeure | 25 days | Contracts Manager | courier and email | on the second business day after despatch |
| NOR-N015 | renewal election | 55 days | Contracts Manager | email with acknowledgement | on receipt |
| NOR-N016 | price adjustment | 55 days | General Counsel | email with acknowledgement | on despatch |
| NOR-N017 | renewal election | 5 days | Contracts Manager | courier and email | on the second business day after despatch |
| NOR-N018 | price adjustment | 55 days | Chief Operating Officer | email with acknowledgement | on despatch |
| NOR-N019 | service credit claim | 65 days | designated account executive | email with acknowledgement | on despatch |
| NOR-N020 | termination for cause | 50 days | Contracts Manager | email with acknowledgement | on receipt |
| NOR-N021 | termination for cause | 15 days | Chief Operating Officer | courier and email | on the second business day after despatch |
| NOR-N022 | breach | 10 days | General Counsel | portal notice | on receipt |
| NOR-N023 | termination for cause | 45 days | General Counsel | courier and email | on despatch |
| NOR-N024 | price adjustment | 80 days | designated account executive | courier and email | on receipt |
| NOR-N025 | assignment request | 90 days | Chief Operating Officer | courier and email | on the second business day after despatch |
| NOR-N026 | assignment request | 90 days | Chief Operating Officer | portal notice | on the second business day after despatch |
| NOR-N027 | assignment request | 25 days | designated account executive | portal notice | on receipt |
| NOR-N028 | non-renewal | 40 days | Contracts Manager | courier and email | on despatch |
| NOR-N029 | price adjustment | 55 days | Contracts Manager | portal notice | on the second business day after despatch |
| NOR-N030 | termination for cause | 25 days | Chief Operating Officer | portal notice | on receipt |
| NOR-N031 | renewal election | 25 days | General Counsel | portal notice | on despatch |
| NOR-N032 | force majeure | 70 days | designated account executive | email with acknowledgement | on the second business day after despatch |
| NOR-N033 | force majeure | 85 days | designated account executive | portal notice | on the second business day after despatch |

| Northfield notice type | Subject | Period | Addressee | Method | Deemed given |
|---|---|---|---|---|---|
| NOR-N034 | assignment request | 70 days | Chief Operating Officer | portal notice | on the second business day after despatch |
| NOR-N035 | service credit claim | 55 days | General Counsel | portal notice | on despatch |
| NOR-N036 | price adjustment | 15 days | Contracts Manager | courier only | on receipt |
| NOR-N037 | breach | 80 days | Contracts Manager | courier and email | on receipt |
| NOR-N038 | price adjustment | 45 days | General Counsel | courier only | on the second business day after despatch |
| NOR-N039 | assignment request | 25 days | Contracts Manager | email with acknowledgement | on despatch |
| NOR-N040 | change of control | 35 days | General Counsel | email with acknowledgement | on receipt |
| NOR-N041 | breach | 45 days | designated account executive | email with acknowledgement | on the second business day after despatch |
| NOR-N042 | price adjustment | 45 days | designated account executive | email with acknowledgement | on despatch |
| NOR-N043 | breach | 55 days | Chief Operating Officer | portal notice | on despatch |
| NOR-N044 | renewal election | 40 days | designated account executive | email with acknowledgement | on despatch |
| NOR-N045 | breach | 20 days | designated account executive | courier and email | on the second business day after despatch |
| NOR-N046 | price adjustment | 45 days | Contracts Manager | courier and email | on receipt |
| NOR-N047 | non-renewal | 65 days | designated account executive | portal notice | on despatch |
| NOR-N048 | assignment request | 85 days | designated account executive | courier only | on receipt |
| NOR-N049 | price adjustment | 25 days | Chief Operating Officer | email with acknowledgement | on despatch |
| NOR-N050 | change of control | 80 days | Contracts Manager | email with acknowledgement | on the second business day after despatch |
| NOR-N051 | breach | 25 days | General Counsel | courier and email | on receipt |
| NOR-N052 | breach | 65 days | General Counsel | courier only | on the second business day after despatch |
| NOR-N053 | service credit claim | 15 days | designated account executive | courier only | on receipt |
| NOR-N054 | service credit claim | 55 days | Contracts Manager | courier only | on the second business day after despatch |
| NOR-N055 | renewal election | 25 days | Chief Operating Officer | portal notice | on the second business day after despatch |
| NOR-N056 | service credit claim | 75 days | Chief Operating Officer | email with acknowledgement | on the second business day after despatch |
| NOR-N057 | service credit claim | 80 days | Chief Operating Officer | courier only | on despatch |
| NOR-N058 | change of control | 30 days | designated account executive | email with acknowledgement | on the second business day after despatch |
| NOR-N059 | change of control | 50 days | designated account executive | courier only | on receipt |
| NOR-N060 | non-renewal | 65 days | designated account executive | courier and email | on the second business day after despatch |
| NOR-N061 | non-renewal | 10 days | designated account executive | email with acknowledgement | on receipt |
| NOR-N062 | service credit claim | 5 days | Contracts Manager | courier and email | on receipt |
| NOR-N063 | breach | 30 days | Chief Operating Officer | portal notice | on the second business day after despatch |
| NOR-N064 | non-renewal | 55 days | Chief Operating Officer | courier and email | on despatch |
| NOR-N065 | assignment request | 35 days | Contracts Manager | portal notice | on despatch |

| Northfield notice type | Subject | Period | Addressee | Method | Deemed given |
|---|---|---|---|---|---|
| NOR-N066 | termination for cause | 75 days | General Counsel | courier and email | on despatch |
| NOR-N067 | non-renewal | 25 days | Chief Operating Officer | email with acknowledgement | on the second business day after despatch |
| NOR-N068 | service credit claim | 10 days | Contracts Manager | courier and email | on receipt |
| NOR-N069 | assignment request | 55 days | Contracts Manager | courier and email | on the second business day after despatch |
| NOR-N070 | force majeure | 5 days | designated account executive | email with acknowledgement | on the second business day after despatch |
| NOR-N071 | change of control | 90 days | designated account executive | portal notice | on the second business day after despatch |
| NOR-N072 | assignment request | 70 days | designated account executive | courier only | on receipt |
| NOR-N073 | price adjustment | 30 days | Contracts Manager | courier only | on the second business day after despatch |
| NOR-N074 | termination for cause | 55 days | Chief Operating Officer | courier only | on receipt |
| NOR-N075 | service credit claim | 45 days | Contracts Manager | courier and email | on the second business day after despatch |
| NOR-N076 | assignment request | 20 days | General Counsel | courier only | on receipt |
| NOR-N077 | non-renewal | 30 days | General Counsel | courier and email | on receipt |
| NOR-N078 | termination for cause | 25 days | General Counsel | portal notice | on despatch |

## 7. Data, intellectual property and licences

Read with Exhibit B, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. On the face of the clause, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Because Northfield is a Wisconsin drive units and gearboxes business with 2 sites, the Component Supply Agreement devolves this to the site manager. Northfield has taken the point up once since signature; the correspondence is filed against Article 3 (Scope of Supply) and did not result in an amendment.

Northfield Drive Systems LLC has notified the Provider that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Strictly, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Northfield treats the obligation as a site-level matter across its 2 sites in Wisconsin, consistent with the Component Supply Agreement. For a supplier of Northfield's size the clause is unremarkable, but Article 6 (Fees and Payment) is drafted more tightly here than in the Provider's standard form.

Northfield retains the right, notwithstanding Article 19 (Confidentiality), to require that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. In point of remedy, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. 2 sites in Wisconsin means Northfield applies the Component Supply Agreement through its regional operations team rather than through head office. Administration of this obligation for Northfield sits with the account team rather than with central contracts, and Article 10 (Change Control) is where it is evidenced.

Northfield bears the risk that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On timing, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Northfield treats the obligation as a site-level matter across its 2 sites in Wisconsin, consistent with the Component Supply Agreement. The Northfield relationship is managed against Article 6 (Fees and Payment) at each quarterly review, and any variance is minuted there rather than in the Order.

## 8. Indemnities and limitation of liability

Read with Schedule 3, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On timing, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Northfield treats the obligation as a site-level matter across its 2 sites in Wisconsin, consistent with the Component Supply Agreement. Nothing in the Northfield negotiation history qualifies Article 6 (Fees and Payment), and a reviewer should not read the pre-signature drafts as doing so.

Northfield acknowledges that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. By way of qualification, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 2 sites, Northfield applies the Component Supply Agreement at the point of delivery, as drive units and gearboxes practice requires. The Northfield file records the position as at the last amendment, and Article 7 (Service Levels) is the reference a reviewer should cite when raising it.

On the terms of Exhibit C, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Per the amendment history, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. The Component Supply Agreement reaches each of Northfield's 2 sites separately, which is how a drive units and gearboxes operator in Wisconsin administers it. The Northfield file records the position as at the last amendment, and Article 13 (Licences) is the reference a reviewer should cite when raising it.

On the terms of Exhibit B, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Textually, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Northfield's 2 sites, since a drive units and gearboxes operator administers the Component Supply Agreement where the units work. Northfield has taken the point up once since signature; the correspondence is filed against Article 13 (Licences) and did not result in an amendment.

**Northfield supply agreement - Exhibit A - Fee Schedule and Annual Escalator**

| Northfield fee line | Item | Quantity | Unit fee | Extended fee | Annual escalator | Escalation timing |
|---|---|---|---|---|---|---|
| NOR-F001 | lift attachment | 32 | $3,797 | $121,504 | 3.1% | annually on the anniversary |
| NOR-F002 | AMR-200 mobile unit | 17 | $2,018 | $34,306 | 4.7% | annually each January |
| NOR-F003 | safety scanner kit | 33 | $6,443 | $212,619 | 3.4% | annually each January |
| NOR-F004 | AMR-400 heavy unit | 26 | $7,481 | $194,506 | 4.3% | annually on the anniversary |
| NOR-F005 | tote carrier | 2 | $2,252 | $4,504 | 4.0% | not escalated |
| NOR-F006 | AMR-400 heavy unit | 39 | $8,033 | $313,287 | 2.0% | annually on the anniversary |
| NOR-F007 | tote carrier | 35 | $7,739 | $270,865 | 5.1% | not escalated |
| NOR-F008 | gateway appliance | 23 | $3,203 | $73,669 | 4.3% | not escalated |
| NOR-F009 | lift attachment | 38 | $1,339 | $50,882 | 5.2% | not escalated |
| NOR-F010 | lift attachment | 5 | $3,910 | $19,550 | 2.4% | not escalated |
| NOR-F011 | gateway appliance | 3 | $8,356 | $25,068 | 3.8% | annually on the anniversary |
| NOR-F012 | fleet controller | 9 | $8,959 | $80,631 | 4.2% | annually on the anniversary |
| NOR-F013 | charge dock | 38 | $8,926 | $339,188 | 3.6% | annually each January |
| NOR-F014 | AMR-200 mobile unit | 23 | $8,160 | $187,680 | 2.4% | on renewal only |
| NOR-F015 | tote carrier | 25 | $6,765 | $169,125 | 4.5% | on renewal only |
| NOR-F016 | fleet controller | 13 | $8,091 | $105,183 | 4.8% | annually each January |
| NOR-F017 | gateway appliance | 30 | $5,814 | $174,420 | 2.4% | on renewal only |
| NOR-F018 | fleet controller | 9 | $7,337 | $66,033 | 2.3% | on renewal only |

| Northfield fee line | Item | Quantity | Unit fee | Extended fee | Annual escalator | Escalation timing |
|---|---|---|---|---|---|---|
| NOR-F019 | AMR-200 mobile unit | 37 | $1,615 | $59,755 | 4.8% | on renewal only |
| NOR-F020 | gateway appliance | 32 | $9,781 | $312,992 | 5.9% | on renewal only |
| NOR-F021 | AMR-400 heavy unit | 14 | $2,676 | $37,464 | 2.3% | not escalated |
| NOR-F022 | charge dock | 39 | $2,574 | $100,386 | 3.9% | on renewal only |
| NOR-F023 | charge dock | 12 | $5,418 | $65,016 | 2.0% | annually on the anniversary |
| NOR-F024 | charge dock | 6 | $7,500 | $45,000 | 2.2% | annually each January |
| NOR-F025 | AMR-400 heavy unit | 15 | $1,593 | $23,895 | 4.0% | not escalated |
| NOR-F026 | charge dock | 11 | $8,831 | $97,141 | 3.6% | on renewal only |
| NOR-F027 | tote carrier | 17 | $2,808 | $47,736 | 4.4% | not escalated |
| NOR-F028 | lift attachment | 29 | $1,151 | $33,379 | 5.3% | not escalated |
| NOR-F029 | charge dock | 21 | $6,796 | $142,716 | 2.3% | not escalated |
| NOR-F030 | safety scanner kit | 3 | $4,808 | $14,424 | 5.1% | on renewal only |
| NOR-F031 | gateway appliance | 34 | $7,020 | $238,680 | 5.1% | annually on the anniversary |
| NOR-F032 | AMR-200 mobile unit | 2 | $1,217 | $2,434 | 2.0% | annually on the anniversary |
| NOR-F033 | safety scanner kit | 12 | $6,224 | $74,688 | 2.5% | not escalated |
| NOR-F034 | safety scanner kit | 8 | $2,459 | $19,672 | 3.6% | annually each January |
| NOR-F035 | lift attachment | 8 | $3,996 | $31,968 | 5.0% | annually each January |
| NOR-F036 | AMR-400 heavy unit | 20 | $5,320 | $106,400 | 2.5% | annually each January |
| NOR-F037 | AMR-400 heavy unit | 7 | $9,455 | $66,185 | 4.4% | annually on the anniversary |
| NOR-F038 | AMR-200 mobile unit | 23 | $5,676 | $130,548 | 4.6% | not escalated |
| NOR-F039 | safety scanner kit | 25 | $3,602 | $90,050 | 4.1% | on renewal only |
| NOR-F040 | gateway appliance | 39 | $8,948 | $348,972 | 2.8% | not escalated |
| NOR-F041 | tote carrier | 2 | $7,587 | $15,174 | 5.6% | on renewal only |
| NOR-F042 | AMR-400 heavy unit | 35 | $9,577 | $335,195 | 5.0% | not escalated |
| NOR-F043 | AMR-200 mobile unit | 29 | $5,804 | $168,316 | 5.4% | on renewal only |
| NOR-F044 | AMR-400 heavy unit | 11 | $7,968 | $87,648 | 3.6% | annually on the anniversary |
| NOR-F045 | charge dock | 8 | $6,909 | $55,272 | 4.7% | not escalated |
| NOR-F046 | AMR-400 heavy unit | 14 | $5,004 | $70,056 | 5.8% | annually each January |
| NOR-F047 | tote carrier | 11 | $7,374 | $81,114 | 5.6% | annually on the anniversary |
| NOR-F048 | lift attachment | 39 | $3,738 | $145,782 | 5.1% | not escalated |
| NOR-F049 | gateway appliance | 39 | $6,040 | $235,560 | 2.2% | annually each January |
| NOR-F050 | safety scanner kit | 15 | $6,053 | $90,795 | 4.9% | on renewal only |
| NOR-F051 | safety scanner kit | 3 | $5,059 | $15,177 | 3.3% | annually each January |
| NOR-F052 | lift attachment | 19 | $8,069 | $153,311 | 2.1% | annually each January |
| NOR-F053 | tote carrier | 18 | $2,122 | $38,196 | 3.3% | annually each January |
| NOR-F054 | fleet controller | 32 | $5,987 | $191,584 | 2.8% | not escalated |
| NOR-F055 | tote carrier | 30 | $1,397 | $41,910 | 5.9% | on renewal only |
| NOR-F056 | charge dock | 22 | $4,241 | $93,302 | 3.2% | annually on the anniversary |
| NOR-F057 | tote carrier | 39 | $4,125 | $160,875 | 3.6% | annually each January |
| NOR-F058 | safety scanner kit | 7 | $8,620 | $60,340 | 2.7% | annually each January |
| NOR-F059 | charge dock | 23 | $7,769 | $178,687 | 3.2% | annually each January |
| NOR-F060 | safety scanner kit | 29 | $2,650 | $76,850 | 4.9% | annually each |

| Northfield fee line | Item | Quantity | Unit fee | Extended fee | Annual escalator | Escalation timing |
|---|---|---|---|---|---|---|
| | | | | | | January |
| NOR-F061 | safety scanner kit | 16 | $3,460 | $55,360 | 3.5% | annually each January |
| NOR-F062 | safety scanner kit | 2 | $1,294 | $2,588 | 4.6% | on renewal only |
| NOR-F063 | gateway appliance | 22 | $4,365 | $96,030 | 4.8% | not escalated |
| NOR-F064 | lift attachment | 37 | $2,244 | $83,028 | 3.9% | not escalated |
| NOR-F065 | fleet controller | 31 | $8,807 | $273,017 | 3.3% | not escalated |
| NOR-F066 | AMR-200 mobile unit | 4 | $1,214 | $4,856 | 2.3% | not escalated |
| NOR-F067 | gateway appliance | 25 | $3,082 | $77,050 | 2.6% | on renewal only |
| NOR-F068 | fleet controller | 11 | $6,252 | $68,772 | 3.2% | on renewal only |
| NOR-F069 | AMR-200 mobile unit | 27 | $6,072 | $163,944 | 4.7% | annually each January |
| NOR-F070 | charge dock | 6 | $2,118 | $12,708 | 2.0% | annually on the anniversary |
| NOR-F071 | gateway appliance | 33 | $2,985 | $98,505 | 2.8% | not escalated |
| NOR-F072 | fleet controller | 36 | $9,768 | $351,648 | 4.6% | not escalated |
| NOR-F073 | charge dock | 11 | $5,036 | $55,396 | 4.3% | annually each January |
| NOR-F074 | safety scanner kit | 4 | $5,468 | $21,872 | 2.9% | not escalated |
| NOR-F075 | AMR-200 mobile unit | 8 | $6,819 | $54,552 | 3.6% | annually each January |
| NOR-F076 | AMR-200 mobile unit | 3 | $5,650 | $16,950 | 3.1% | not escalated |
| NOR-F077 | AMR-400 heavy unit | 26 | $7,679 | $199,654 | 5.4% | not escalated |
| NOR-F078 | gateway appliance | 40 | $8,035 | $321,400 | 5.7% | annually on the anniversary |
| NOR-F079 | gateway appliance | 18 | $2,137 | $38,466 | 4.2% | not escalated |
| NOR-F080 | gateway appliance | 5 | $5,067 | $25,335 | 4.9% | not escalated |
| NOR-F081 | gateway appliance | 38 | $2,642 | $100,396 | 2.9% | on renewal only |
| NOR-F082 | charge dock | 33 | $8,790 | $290,070 | 2.3% | annually on the anniversary |
| NOR-F083 | AMR-200 mobile unit | 40 | $4,104 | $164,160 | 3.2% | not escalated |
| NOR-F084 | safety scanner kit | 7 | $9,807 | $68,649 | 4.1% | not escalated |
| NOR-F085 | lift attachment | 29 | $3,247 | $94,163 | 5.5% | on renewal only |
| NOR-F086 | safety scanner kit | 30 | $3,192 | $95,760 | 3.8% | on renewal only |
| NOR-F087 | AMR-200 mobile unit | 11 | $6,909 | $75,999 | 2.9% | on renewal only |
| NOR-F088 | gateway appliance | 7 | $3,676 | $25,732 | 4.0% | on renewal only |

## 9. Term, termination and transition

Northfield Drive Systems LLC has notified the Provider that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Per the amendment history, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. For Northfield, a drive units and gearboxes operator running 2 sites out of Wisconsin, the point matters because the Component Supply Agreement is administered site by site. Notices under Article 2 (Definitions) go to the contracting entity named in the recital and not to any Northfield affiliate that may operate a site.

Under Article 19 (Confidentiality) of the Component Supply Agreement, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Deliberately so: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 2 sites, Northfield applies the Component Supply Agreement at the point of delivery, as drive units and gearboxes practice requires. Nothing in the Northfield negotiation history qualifies Article 21 (Governing Law and Disputes), and a reviewer should not read the pre-signature drafts as doing so.

Northfield acknowledges that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. On the wording, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Wisconsin is where Northfield runs drive units and gearboxes operations across 2 sites, and the Component Supply Agreement follows that footprint. Where Northfield has raised a query the Provider has answered by reference to Article 14 (Indemnities), and the exchange is on the contract file.

Read with Schedule 3, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As a remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Running 2 sites in drive units and gearboxes, Northfield takes this obligation at site level rather than centrally under the Component Supply Agreement. Where Northfield has raised a query the Provider has answered by reference to Article 19 (Confidentiality), and the exchange is on the contract file.

## 10. Assignment, notices and general

Article 12.2 of this instrument records a departure from the Provider's standard position: the Provider deposits the fleet-orchestration source with an escrow agent, releasable on insolvency, cessation of maintenance, or persistent breach. The provision was negotiated at signature and is not qualified elsewhere in the Component Supply Agreement; a reader reconciling this instrument against the Provider's standard terms should treat Article 12.2 as governing.

Save as Schedule 2 otherwise provides, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Tighter here than standard: the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. In drive units and gearboxes the burden of this sits with operations, and Northfield discharges it across 2 sites under the Component Supply Agreement. Administration of this obligation for Northfield sits with the account team rather than with central contracts, and Article 2 (Definitions) is where it is evidenced.

Northfield may require that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Deliberately so: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. In drive units and gearboxes the burden of this sits with operations, and Northfield discharges it across 2 sites under the Component Supply Agreement. Northfield has taken the point up once since signature; the correspondence is filed against Article 11 (Data and Telemetry) and did not result in an amendment.

Northfield may require that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Materially, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. In drive units and gearboxes the burden of this sits with operations, and Northfield discharges it across 2 sites under the Component Supply Agreement. The Northfield relationship is managed against Article 19 (Confidentiality) at each quarterly review, and any variance is minuted there rather than in the Order.

Where Article 19 (Confidentiality) applies, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. On the negotiated text, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Running 2 sites in drive units and gearboxes, Northfield takes this obligation at site level rather than centrally under the Component Supply Agreement. The Northfield file records the position as at the last amendment, and Article 2 (Definitions) is the reference a reviewer should cite when raising it.